

BREYER, J., dissenting

legitimate governmental objective.” *Bell v. Wolfish*, 441 U. S., at 539. What is unreasonable and illegitimate in time of peace may be reasonable and legitimate in time of war.

Moreover, *Bivens* comes accompanied with a qualified-immunity defense. Federal officials will face suit only if they have violated a constitutional right that was “clearly established” at the time they acted. *Harlow*, 457 U. S., at 818.

Further, in order to prevent the very presence of a *Bivens* lawsuit from interfering with the work of a Government official, this Court has held that a complaint must state a claim for relief that is “plausible.” *Iqbal*, 556 U. S., at 679. “[C]onclusory” statements and “[t]hreadbare” allegations will not suffice. *Id.*, at 678. And the Court has protected high-level officials in particular by requiring that plaintiffs plead that an official was personally involved in the unconstitutional conduct; an official cannot be vicariously liable for another’s misdeeds. *Id.*, at 676.

Finally, where such a claim is filed, courts can, and should, tailor discovery orders so that they do not unnecessarily or improperly interfere with the official’s work. The Second Circuit has emphasized the “need to vindicate the purpose of the qualified immunity defense by dismissing non-meritorious claims against public officials at an early stage of litigation.” *Iqbal v. Hasty*, 490 F. 3d 143, 158 (2007). Where some of the defendants are “current or former senior officials of the Government, against whom broad-ranging allegations of knowledge and personal involvement are easily made, a district court” not only “may, but ‘*must* exercise its discretion in a way that protects the substance of the qualified immunity defense . . . so that’” those officials “‘are not subjected to unnecessary and burdensome discovery or trial proceedings.’” *Id.*, at 158–159. The court can make “all such discovery subject to prior court approval.” *Id.*, at 158. It can “structure . . . limited discovery by examining written responses to interrogatories and requests to admit before au-